SOURCE: MSC.561(108).pdf
URL:
https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.561(108).pdf
.10 Radio Regulations means the Radio Regulations complementing the Constitution and Convention of the International Telecommunication Union which is in force at any given time;
.11 1978 STCW Convention means the International Convention on Standards of Training, Certification and Watchkeeping for Seafarers, 1978;
.12 1993 Torremolinos Protocol means the Torremolinos Protocol of 1993 relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977;
RESOLUTION MSC.561(108) (adopted on 23 May 2024)
AMENDMENTS TO THE ANNEX TO THE INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND
WATCHKEEPING FOR FISHING VESSEL PERSONNEL, 1995 (Revised annex to the 1995 STCW-F Convention)
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.13 2012 Cape Town Agreement means the Cape Town Agreement of 2012 on the Implementation of the Provisions of the 1993 Torremolinos Protocol relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977;

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relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977;
.14 Month means a calendar month or 30 days made up of periods of less than one month;
.15 Seagoing service means service on board a vessel relevant to the issue or revalidation of a certificate or other qualification;
.16 Propulsion power means the total maximum continuous rated output power, in kilowatts, of all the vessel's main propulsion machinery which appears on the vessel's certificate of registry or other official document;
.17 Limited waters means those waters in the vicinity of a Party as defined by its Administration within which a degree of safety is considered to exist which enables the standards of qualification and certification for all fishing vessel personnel to be set at a lower level than for service outside the defined limits. In determining the extent of limited waters, the Administration shall take into
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In determining the extent of limited waters, the Administration shall take into consideration the guidelines developed by the Organization;
.18 Unlimited waters mean waters beyond limited waters;
.19 Length (L) shall be taken as 96% of the total length on a waterline at 85% of the least moulded depth measured from the keel line, or as the length from the foreside of the stem to the axis of the rudder stock on that waterline, if that be greater. In vessels designed with rake of keel the waterline on which this length is measured shall be parallel to the designed waterline;

.20 Moulded depth is the vertical distance measured from the keel line to the top of the working deck beam at side;
.21 STCW-F Code means the Standards of Training, Certification and Watchkeeping for Fishing Vessel Personnel Code, as adopted by resolution MSC.562(108), as may be amended by the Organization;
.22 Owner means the owner of the fishing vessel or any other organization or
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MSC.562(108), as may be amended by the Organization;
.22 Owner means the owner of the fishing vessel or any other organization or person, such as the manager, agent, operator, company, authorized representative or bareboat charterer, who has assumed the responsibility for the operation of the vessel from the owner an d who, on assuming such responsibility, has agreed to take over the duties and responsibilities imposed on fishing vessel owners in accordance with the Convention, regardless of whether any other organization or person fulfils certain of the duties or responsibilities on behalf of the fishing vessel owner;
.23 Fishing vessel personnel means every person employed or engaged in any capacity or carrying out an occupation on board any fishing vessel, including persons working on board who are paid on the basis of a share of the catch but excluding pilots, naval personnel, other persons in the permanent service
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but excluding pilots, naval personnel, other persons in the permanent service of a government, shore -based persons carrying out work aboard a fishing vessel and fisheries observers;
RESOLUTION MSC.561(108) (adopted on 23 May 2024)
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.24 Function means a group of tasks, duties and responsibilities, as specified in the STCW-F Code, necessary for fishing vessel operation, safety of life at sea or protection of the marine environment;
.25 Fishing training vessel means a dedicated training vessel, designed for catching and storing fish, which provides a training opportunity for demonstration and assessment of the competences required by the provisions of chapter II of this annex;
.26 GMDSS radio operator means a person who is qualified in accordance with
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provisions of chapter II of this annex;
.26 GMDSS radio operator means a person who is qualified in accordance with the provisions of regulation II/6 of the Convention;
.27 Certificate of competency means a certificate issued and endorsed for

skippers, officers and GMDSS radio operators in accordance with the provisions of chapter II of this annex and entitling the lawful holder thereof to serve in the capacity and perform the functions involved at t he level of responsibility specified therein; and

.28 Certificate of proficiency means a certificate, other than a certificate of competency issued to fishing vessel personnel, stating that the relevant requirements of training, competencies or seagoing service in the Convention have been met.

2 These regulations are supplemented by the mandatory provisions contained in part A of the STCW-F Code and:

.1 any reference to a requirement in a regulation also constitutes a reference to

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of the STCW-F Code and:

.1 any reference to a requirement in a regulation also constitutes a reference to the corresponding section of part A of the STCW-F Code;

.2 in applying these regulations, the related guidance and explanatory material contained in part B of the STCW-F Code should be taken into account to the greatest degree possible in order to achieve a more uniform implementation of the Convention provisions on a global basis;

.3 amendments to part A of the STCW -F Code shall be adopted, brought into force and take effect in accordance with the provisions of article 10 of the Convention concerning the amendment procedure applicable to the annex; and

.4 part B of the STCW -F Code shall be amended by the Maritime Safety Committee in accordance with its rules of procedure.

Regulation I/2
Application

1 The Administration of a Party, if it considers it unreasonable or impracticable to apply

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Regulation I/2
Application

1 The Administration of a Party, if it considers it unreasonable or impracticable to apply the full requirements of regulations II/3, II/4 and II/5-1-1, II/5-1-2 or II/5-2 and the requirement of the use of the English language to personnel serving on boar d a fishing vessel of less than 45 metres in length operating exclusively from its ports and fishing within its limited waters, may determine which of these regulations should not apply, wholly or in part, to such personnel, without derogation from the principles of safety in the Convention. In such a case, the Administration concerned shall report to the Secretary -General on the details of the measures it has taken with respect to the training and certification of such personnel.

RESOLUTION MSC.561(108) (adopted on 23 May 2024)

AMENDMENTS TO THE ANNEX TO THE INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND

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2 For the purpose of this Convention, the Administration may decide to use the following gross tonnage in place of length (L) as the basis for measurement for all chapters:
.1 a gross tonnage of 300 shall be considered equivalent to a length (L) of 24 metres; and
.2 a gross tonnage of 950 shall be considered equivalent to a length (L) of 45 metres.
Regulation I/3
Certificates and endorsements
1 Certificates of competency for fishing vessel personnel shall only be issued by the Administration if the requirements for service, age, medical fitness, training, qualification and examinations are met in accordance with these regulations.
2 A certificate of competency issued by a Party in compliance with paragraph 1 shall be
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examinations are met in accordance with these regulations.
2 A certificate of competency issued by a Party in compliance with paragraph 1 shall be
endorsed by that Party attesting the issue of that certificate in the form as prescribed in format 1 or 2 of section A-I/3 of the STCW-F Code.
3 Certificates and endorsements shall be issued in the official language or languages of the issuing country. If the language used is not English, the text shall include a translation into that language.
4 In respect of radio operators, Parties may:
.1 include the additional knowledge required by regulation II/6 in the examination for the issue of a certificate complying with the Radio Regulations; or
.2 issue a separate certificate indicating that the holder has the additional knowledge required by regulation II/6.
5 The Administration which has recognized a certificate issued by or under the authority
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knowledge required by regulation II/6.
5 The Administration which has recognized a certificate issued by or under the authority of another Party in compliance with regulation I/7 shall issue an endorsement attesting the recognition of that certificate in the form prescribed in format 3 of section A-I/3 of the STCW-F Code.
6 The endorsement shall expire as soon as the certificate endorsed expires or is withdrawn, suspended or cancelled by the Party which issued it and, in any case, not more than five years after the date of issue.